

[1 EDW. 7.]

Southampton and Winchester [Ch. cclxxiv.]
Great Western Junction Railway Act, 1901.



CHAPTER cclxxiv.

An Act for making a railway between Winchester and Southampton to be called the Southampton and Winchester Great Western Junction Railway and for other purposes. A.D. 1901.
[17th August 1901.]

WHEREAS the making and maintaining of the railways herein-after described in the county of Southampton would be of public and local advantage:

And whereas the persons in this Act named with others are willing at their own expense to construct the said railways and are desirous of being incorporated into a company for that purpose:

And whereas it is expedient that the Company so to be incorporated (herein-after referred to as "the Company") and any company or person working or using their railways be authorised to run over and use the portion of railway and the station herein-after mentioned:

And whereas it is expedient to authorise the payment of interest out of capital during the construction of the railways as herein-after provided:

And whereas plans and sections showing the lines and levels of the railways authorised by this Act with a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Southampton and are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with

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Great Western Junction Railway Act, 1901.

A.D. 1901. the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the Southampton and Winchester Great Western Junction Railway Act 1901.

Incorporation of general Acts. 2. The Companies Clauses Consolidation Act 1845 Part I (relating to cancellation and surrender of shares) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I (relating to construction of a railway) and Part III (relating to working agreements) of the Railways Clauses Act 1863 are (except where expressly varied by this Act) incorporated with and form part of this Act.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Company incorporated by this Act ;

The expressions "the railways" and "the undertaking" mean respectively the railways and the undertaking by this Act authorised ;

"The Didcot Company" means the Didcot Newbury and Southampton Railway Company ;

"The Great Western Company" means the Great Western Railway Company.

Company incorporated. 4. Alfred Bowker Francis William Bott Frederick Goodenough John Emilius Le Feuvre William Henry Myers and Frederick Beresford Turner and all other persons and corporations who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purpose of making and maintaining the railways and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Southampton and Winchester Great Western Junction Railway Company" and by that name shall be a body corporate with perpetual succession and

a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. A.D. 1901.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways herein-after described with all needful stations sidings junctions approaches works and conveniences connected therewith or incidental thereto and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for those purposes The railways herein-before referred to and authorised by this Act are—

Power to
make rail-
ways.

(1) A railway (No. 1) 7 furlongs 5·85 chains in length commencing in the parish of Milland in the city and borough of Winchester by a junction with the Didcot Company's railway at or near the point where the footbridge at the south end of the goods yard of the Didcot Company's railway at Winchester crosses that company's railway and terminating in the parish of Twyford at a point three hundred and sixty yards or thereabouts measured along the Didcot Company's railway north of the centre of the bridge carrying that railway over the road which crosses the valley of the Itchen near St. Cross Mill leading from St. Cross to the village of Twyford :

(2) A railway (No. 2) 14 miles 0 furlongs 3·15 chains in length commencing at the termination of Railway No. 1 above described and also by a junction with the Didcot Company's railway at the said point of termination above described and terminating in the parish of St. John in the county borough of Southampton by a junction with the railway or tramway of the Southampton Harbour Board at a point thereon thirty-five yards or thereabouts measured in a south-easterly direction from the south-east corner of French Street.

6. For the protection of the mayor aldermen and burgesses of the borough of Southampton (in this section called "the corporation") the following provisions shall have effect (that is to say) :—

For pro-
tection of
corporation
of South-
ampton.

(1) At least fourteen days before the commencement of any work in pursuance of the powers of this Act which may in any way interfere with or affect any water main of the corporation, a plan and section (showing the nature of the

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—

work proposed) shall be submitted to the corporation together with a description of the mode of executing such work and of protecting such main and if within fourteen days from such submission the corporation disapprove of the said plan section or particulars or make any further requirements such work shall not be commenced until the plan section and particulars have been agreed or settled by arbitration. Provided that if the corporation do not within fourteen days after such submission signify their approval or disapproval thereof or their requirements in relation thereto they shall be deemed to have approved thereof. Every such work shall be constructed in accordance with the plan and section and particulars approved agreed or settled as aforesaid and shall (so far as it may interfere with or affect or be situate within three feet of the said main) be executed under the superintendence and to the reasonable satisfaction of and in such manner as shall reasonably be required by the waterworks engineer of the corporation :

- (2) In constructing the bridge for carrying the highway leading from Eastleigh to Allbrook over the Railway No. 1 by this Act authorised provision shall be made to the reasonable satisfaction of the waterworks engineer of the corporation for carrying the existing water mains and pipes of the corporation in that road and an additional water main not exceeding a maximum internal diameter of thirty-six inches which they may require to lay down therein over such bridge and for protecting the same from frost accident or injury :
- (3) Any water mains or pipes of the corporation which shall be raised diverted sunk or altered shall be relaid at such depth as may be reasonably required by the corporation for protecting such pipes from frost accident or injury :
- (4) The waterworks engineer of the corporation shall if the corporation so think fit have the exclusive direction and management of and may at the reasonable cost in all things of the Company execute all such work as may be reasonably necessary for the diversion removing raising refixing sinking or otherwise altering the position of restoring and protecting any water mains pipes or other works of the corporation which it may be necessary or expedient to divert remove raise refix sink alter restore or protect by reason of the execution by the Company of any of the powers of this Act and for preventing any interruption to the supply of water by the corporation or

any obstruction or increased expense to the corporation in the repair or renewal of such mains pipes or works : A.D. 1901.

- (5) All costs charges and expenses reasonably incurred by the corporation or their waterworks engineer under the provisions of this Act in relation to the superintendence or watching by the corporation or their engineer or officers of any works of the Company authorised by this Act during the construction thereof by which any water apparatus of the corporation may be interfered with or affected shall be paid by the Company to the corporation on demand :
- (6) If any interruption whatsoever in the supply of water by the corporation shall be occasioned by the Company or by the acts of any of their contractors agents workmen or servants or any person in the employ of them or any of them either during the construction or subsequent maintenance of the works by this Act authorised the Company shall indemnify and compensate the corporation in respect of all damage or loss which they may sustain by reason or in consequence of such interruption and such compensation may be recovered by the corporation in any court of competent jurisdiction :
- (7) If any difference arise between the Company and the corporation touching this section or anything to be done or not to be done or any moneys to be paid thereunder such difference shall be determined by arbitration by an engineer to be appointed (unless otherwise agreed on between the parties) by the President of the Institution of Civil Engineers on the application of either party after notice thereof in writing to the other.

7. For the protection of the South Hants Waterworks Company (herein-after called "the water company") the following provisions shall have effect in addition to and not in substitution for the provisions in this Act and the Acts incorporated therewith for the protection of water companies (that is to say) :—

For protection of South Hants Waterworks Company.

The water company and their engineer and workmen may at all reasonable times when necessary enter upon the railways and works by this Act authorised for the purpose of laying and maintaining and may lay and maintain any mains pipes services or other works needful or proper for the carrying on of the supply of water under or over the said railways or works and in every case in which the works of the Company shall interfere with the mains and pipes of the water company the

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Company shall give every reasonable facility for provision being made by the water company at their own expense so as to allow of such mains and pipes being laid or replaced by mains and pipes of a larger size. Provided always that before entering upon the railways and works by this Act authorised for the purpose of laying any mains the water company shall give to the Company fourteen days' notice in writing of their intention so to do accompanied by a plan and section of the works they propose and in case of repair shall give three days' notice except in cases of emergency when they shall give the longest notice they can. Provided further that the water company shall in the exercise of the powers conferred upon them by this section do as little damage as possible (and make compensation for any damage done) and shall not interrupt or prejudicially interfere with the traffic passing on the railways or other property of the Company and all works executed by the water company in pursuance of such powers shall be to the reasonable approval and under the superintendence of the Company's engineer and the reasonable cost of such superintendence shall be borne by the water company. If any difference shall arise between the Company and the water company touching this section the same shall be referred to an engineer to be agreed on or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protection of
London
and South
Western
Railway
Company.

8. Whereas Railway No. 2 by this Act authorised is so laid out as to pass over or otherwise interfere with various railways of the London and South Western Railway Company (in this section called "the South Western Company") as follows (that is to say):—

- (1) The main line from London to Southampton (in this section referred to as "the Southampton line");
- (2) The Bishopstoke and Salisbury Railway; and
- (3) The Southampton and Dorchester Railway:

All of which said lines and the works in connexion therewith collectively or any of them separately are included in the term "the railways of the South Western Company":

Now therefore in constructing Railway No. 2 the following provisions shall have effect:—

- (A) The Company shall not acquire any ownership of or in any land or property of the South Western Company but the

Company shall acquire as herein-after mentioned only an easement or right for the making maintaining and using of Railway No. 2 and the Company shall not enter upon or interfere with the railways of the South Western Company or execute any work whatsoever over or affecting the same or within thirty yards thereof until there shall have been delivered to the South Western Company by the Company plans drawings and specifications (herein-after referred to as "the said plans") of the works (herein-after referred to as "the said works") intended to be executed over or affecting those railways which plans shall describe the manner of executing the said works and the materials to be used for the purpose nor until the said plans have been examined and approved in writing by the chief engineer of the South Western Company or in the event of his failing to approve or disapprove the same for one calendar month after the said plans have been delivered to that company until the same have been examined and approved by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers And the said works shall be executed by the Company at their sole expense and shall respectively be subsequently maintained by the Company in all things according to the said plans as approved under the superintendence and to the reasonable satisfaction of the chief engineer of the South Western Company and if and whenever the Company fails to do so after one month's notice in writing for that purpose (or in case of emergency without notice) the South Western Company may enter upon the lands of the Company and may therein and thereon as well as upon their own lands make do and execute any works which they from time to time may think requisite in that behalf and the sums from time to time certified by their engineer to be the amount of the expenditure in that behalf shall be repaid to them by the Company and in default of full repayment the amount due may be recovered with full costs by the South Western Company from the Company in any court of competent jurisdiction :

- (B) The Company shall bear and on demand pay to the South Western Company the expense of the employment by them during the making of Railway No. 2 over and adjacent to the railways of the South Western Company of a sufficient number of inspectors and watchmen to be appointed by them for

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watching their railway with reference to and during the execution of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company or of their contractors with reference thereto or otherwise :

- (c) If by reason of any works or proceedings or any act or omission of the Company or their contractors with reference to the Railway No. 2 there shall be any obstruction of or any interference with the railways of the South Western Company so as to prevent or impede the convenient passage of engines and carriages along the same the Company shall pay to the South Western Company the sum of thirty-five pounds by way of ascertained damages for every hour during which such obstruction or interference continues :
- (d) The Company shall be responsible for and make good to the South Western Company all costs losses damages and expenses occasioned to the railways of the South Western Company or the traffic thereon or any person or persons using the same or otherwise by reason of the execution or failure of any of the works of or incidental to Railway No. 2 or any act or omission of the Company or any of the persons in their employ or their contractors or others and the Company shall effectually indemnify and hold harmless the South Western Company from all claims and demands upon or against them by reason of any such execution or failure and of any such act or omission :
- (E) In the carrying of Railway No. 2 over the Southampton line of the South Western Company the bridge shall be constructed with one clear span of not less than fifty-two feet and if and when called upon to do so by the South Western Company with two clear spans one on either side of such span of fifty-two feet of sixteen feet each all measured on the square and with fourteen feet clear headway above the levels of the rails of the South Western Company ;

In the carrying of Railway No. 2 over the Bishopstoke and Salisbury line of the South Western Company the bridge shall be constructed with a span of not less than twenty-eight feet measured on the square and with fourteen feet clear headway above the level of the rails of the South Western Railway ;

In the carrying of Railway No. 2 over the Southampton and Dorchester line of the South Western Company the bridge

shall be constructed with a span of not less than seventy-five feet measured on the square with fourteen feet clear headway above the level of the rails of the South Western Railway and in the event of the Company requiring for such bridge any land in addition to the land or in lieu of the land required for a bridge of the span shown upon the deposited plans such land shall be acquired and paid for by the South Western Company :

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(f) No land belonging to the South Western Company shall be taken by the Company without the consent in writing of the South Western Company under their common seal first had and obtained Provided always that the Company may purchase and take from the South Western Company and that company shall if so required by the Company grant in perpetuity to the Company an easement or right of using for the purposes of Railway No. 2 and the works and conveniences necessary in connexion therewith such parts of the lands of the South Western Company as are necessary for those purposes :

(g) If any difference shall arise touching this section (other than is provided by subsection (A) of this section) the same shall failing agreement be determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers.

9. The capital of the Company shall be six hundred thousand pounds in sixty thousand shares of ten pounds each.

Capital and
number and
amount of
shares.

10. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof.

Shares not to
be issued until
one-fifth part
thereof shall
have been paid
up.

11. One-fifth of the amount of a share shall be the greatest amount of a call and two months at the least shall be the interval between successive calls and three-fourths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Calls.

12. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt on
behalf of
incapacitated
persons.

13. The Company may from time to time borrow on mortgage of the undertaking any sums not exceeding in the whole two

Power to
borrow.

A.D. 1901. — hundred thousand pounds in manner following (that is to say) In respect of each sum of three hundred thousand pounds of such capital of six hundred thousand pounds any sum not exceeding in the whole one hundred thousand pounds but no part of such first instalment of one hundred thousand pounds shall be borrowed unless and until the whole of the land required for the construction of the railways shall have been purchased other than the land to be acquired from the mayor aldermen and burgesses of the county borough of Southampton and the Southampton Harbour Board and no part of the second instalment of one hundred thousand pounds shall be borrowed unless and until the three hundred thousand pounds of capital in respect of which such second instalment is borrowed has been issued and accepted and paid up to the extent herein-after provided and the Company shall have given such proof thereof respectively as the justice herein-after mentioned may require but no part of either of such sums shall be borrowed until so much of the respective portion of capital in respect of which such sum is authorised to be borrowed is issued and accepted and one-half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such respective portion of capital has been issued and accepted and that one-half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such respective portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares were issued bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and that such persons or corporations their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

For appointment of a receiver.

14. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

15. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

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Debenture
stock.

16. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Application
of moneys.

17. The first ordinary meeting of the Company shall be held within twelve months after the passing of this Act.

First
ordinary
meeting.

18. The number of directors shall be eight but the Company may vary the number provided that the number be not at any time more than ten or less than five.

Number of
directors.

19. The qualification of a director shall be the possession in his own right of not less than fifty shares.

Qualification
of directors.

20. The quorum of a meeting of directors while their number consists of eight or less shall be three and when more than eight shall be four.

Quorum.

21. Alfred Bowker Francis William Bott Frederick Goodenough John Emilius Le Feuvre William Henry Myers Frederick Beresford Turner and two other duly qualified persons to be nominated by them or the majority of them and consenting to the nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying

First
directors.Election of
directors.

A.D. 1901. — the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Lands for extraordinary purposes.

22. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed twenty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

Period for compulsory purchase of lands.

23. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to take easements &c. by agreement.

24. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Company empowered or may be required to underpin or otherwise strengthen houses near railway.

25. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of the railways it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company :
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to an engineer to be agreed upon or in case of difference to an engineer to be appointed at the instance of either party by the Board of Trade :
- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68

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of the Lands Clauses Consolidation Act 1845 or under any other Act:

(8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts :

(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Inclination of road.

26. In altering for the purposes of this Act the road next herein-after mentioned the Company may make the same of any inclination not steeper than the inclination herein-after mentioned (that is to say) :—

Number on deposited Plan.	Parish.	Description of Road.	Intended Inclination.
16	Twyford	Public road	1 in 16½

Provided that the Company shall reduce the inclination of such road on the east side thereof so far as it is reasonably practicable within the limits of lateral deviation shown upon the deposited plans.

Power to divert roads as shown on deposited plans.

27. The Company may divert the public highways referred to in the next following table in the manner shown upon the deposited plans and sections and when and as in each case the new portion of any road is made to the satisfaction of two justices and is open for public use may stop up and cause to be discontinued as a road so much of the existing road as will be rendered unnecessary by the new portion of road (that is to say) :—

Railway.	Parish.	No. of Road on Plan.
No. 2	Twyford	16
No. 2	Twyford	56
No. 2	Twyford	60

And when and so soon as such portion of each of the said roads is so stopped up all rights of way over the same shall cease and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railways appropriate and use for the purposes of their undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Company.

28. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company or society." Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

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Protection
of gas and
water mains
of local
authorities.

29. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways by a bridge or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered.

Company not
liable to
repair sur-
face of road
level of
which is not
permanently
altered.

30. If the railways and works are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
completion
of works.

31. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of twenty-eight thousand one hundred and sixty-one pounds and sixpence Two and three quarters per Centum Consolidated Stock (herein-after referred to as "the deposit fund") representing five per centum on the amount of the estimate in respect of the railways has been transferred into the name of the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act Be it enacted that notwithstanding anything contained in the said Act the deposit fund shall not be paid to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for the completion of the railways open the same for the public conveyance of passengers and if the Company shall make default in so opening the railways the deposit fund shall be applicable and shall be applied in the manner provided by the next following

Deposit
money not to
be repaid
except so far
as railways
are opened.

A.D. 1901. — section of this Act Provided that if within such period as aforesaid the Company open any portion of the railways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the railways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the railways so opened bears to the entire length of the railways the High Court shall on the application of the depositors order the portion of the deposit fund specified in the certificate to be repaid or retransferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

Application
of deposit.

32. If the Company do not previously to the expiration of the period limited for the completion of the railways complete and open the same for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the depositors Provided that until the deposit fund has been repaid or retransferred to the depositors or has become otherwise

applicable as herein-before mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors. A.D. 1901.

33. The Company may demand and take for the use of the railways by any other company or person with engines and carriages such reasonable tolls as they think fit Provided that nothing in this section shall prejudice or affect the provisions of the sections of this Act whereof the marginal notes are "Running powers to Company" and "Running powers to Great Western Railway Company." Tolls.

34. The classification of merchandise traffic including perishable merchandise by passenger train and the schedule of maximum rates and charges applicable thereto and the regulations and provisions contained in the schedule to the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order 1892 which Order is scheduled to and confirmed by the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order Confirmation Act 1892 shall be applicable and apply to the Company as if it were one of the railway companies named in the schedule to the Order confirmed by the said Act Provided that in respect of the conveyance of a consignment of perishable merchandise not exceeding fifty-six pounds in weight by passenger train the Company shall not be entitled to charge a higher rate than the maximum rate which they are authorised to charge for the conveyance of parcels of the same weight. Rates for merchandise.

35. For the conveyance on the railway of small parcels not exceeding five hundred pounds in weight by passenger trains the Company may demand and take any charges not exceeding the following (that is to say) :— Charges for small parcels.

For any parcel not exceeding seven pounds in weight threepence ;

For any parcel exceeding seven pounds but not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds but not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds but not exceeding fifty-six pounds in weight ninepence ;

And for any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight the Company may demand any sum they think fit :

A.D. 1901. — Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Maximum
rates for
passengers.

36. The maximum rates of charge to be made by the Company for the conveyance of passengers upon the railway including every expense incidental to such conveyance shall not exceed the following (that is to say) :—

For every passenger conveyed in a first class carriage threepence per mile ;

For every passenger conveyed in a second class carriage twopence per mile ;

For every passenger conveyed in a third class carriage one penny per mile ;

For every passenger conveyed on the railway for a less distance than three miles the Company may charge as for three miles and every fraction of a mile beyond three miles or any greater number of miles shall be deemed a mile.

Passengers'
luggage.

37. Every passenger travelling upon the railways may take with him his ordinary luggage not exceeding one hundred and twenty pounds in weight for first class passengers one hundred pounds in weight for second class passengers and sixty pounds in weight for third class passengers without any charge being made for the carriage thereof.

Foregoing
charges not
to apply
to special
trains.

38. The restrictions as to the charges to be made for passengers shall not extend to any special train run upon the railways in respect of which the Company may make such charges as they think fit but shall apply only to the ordinary and express trains appointed from time to time by the Company for the conveyance of passengers on the railways.

Working
and traffic
arrange-
ments with
Didcot Com-
pany and
Southamp-
ton Harbour
Board.

39. The Company on the one hand and the Didcot Company and the Southampton Harbour Board on the other hand may subject to the provisions of Part III of the Railways Clauses Act 1863 as amended or varied by the Railway and Canal Traffic Acts 1873 and 1888 enter into agreements with respect to the following purposes or any of them (that is to say) :—

The maintenance and management by the Didcot Company of the railways or any part thereof and of the works connected therewith ;

The use or working of the railways or of any part thereof and A.D. 1901.
the conveyance of traffic thereon ;

The supply and maintenance by the working company under and
during the continuance of any such agreement as aforesaid for
the working of the railways of engines stock and plant necessary
for the purposes of such agreement and the employment of
officers and servants ;

The management regulation interchange reception collection
transmission and delivery of traffic upon or coming from or
destined for the railways of the Company or the railways of
the Didcot Company ;

The provision of terminal and other accommodation offices
buildings signals and conveniences for the traffic of the
Company ;

The fixing subject to the authorised maximum rates and the
collection and apportionment of the tolls rates charges receipts
and revenues levied taken or arising in respect of traffic and
the payments allowances rebates or drawbacks to be paid made
or allowed by either the Company or the Didcot Company to
the other of them.

40.—(1) The Company and any company or person lawfully Running
working or using the railways of the Company or any part thereof powers to
may run over and use with their engines carriages and waggons Company.
officers and servants whether in charge of engines and trains or for
any other purpose whatsoever and for the purposes of traffic of
every description—

So much of the railway of the Didcot Company as lies between
the commencement of Railway No. 2 and the station on
the Didcot Company's railway at Winchester including that
station :

Together with all other stations and all roads platforms points
signals water water engines engine sheds standing room for engines
booking and other offices warehouses sidings junctions machinery
works and conveniences on or connected with the said portion of
railway and station respectively And as regards traffic of every
description conveyed by them the Company may demand and take
upon and in respect of the said portion of railway and the said
station the rates and charges which the Didcot Company and the
Company respectively are entitled to demand and take.

(2) The terms conditions and regulations to be observed and
fulfilled and the tolls charges rent or other considerations to be

A.D. 1901. — paid by the Company for and in respect of the use of the said portion of railway station works and conveniences respectively shall be such as may be agreed upon between the Company and the Didcot Company or failing agreement as may be determined on the application of any of the companies or persons interested by a standing arbitrator to be appointed from time to time by them or if they do not agree by the chairman of the North Eastern Railway Company on the application of any of the parties.

(3) In running over and using the said portion of railway and station and using the stations sidings and conveniences in accordance with the provisions herein-before contained the regulations and byelaws for the time being in force on the railway so used shall be at all times observed so far as such byelaws shall be applicable.

Short-distance charge in case of working agreement with Didcot Company where rates and charges fixed with reference to existing Rates and Charges Order of another company.

41. During the continuance of any agreement to be entered into under the provisions of this Act for the working or use of the railways of the Company by the Didcot Company or of the running powers by this Act conferred on the Company the railways of the companies shall for the purpose of short-distance rates and charges be considered as one railway and in estimating the amount of rates and charges in respect of passengers conveyed partly on the railways of the Company and partly on the railways of the Didcot Company rates and charges may be charged as for three miles and for every mile or fraction of a mile beyond three miles as for one mile only and in estimating the amount of rates and charges in respect of merchandise traffic conveyed partly on the railways of the Company and partly on the railways of the Didcot Company the Company shall be deemed to be a company connected with the Didcot Company and specified in the schedule to the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order 1892 confirmed by the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order Confirmation Act 1892.

Running powers to Great Western Railway Company.

42.—(1) The Great Western Company and any company or person lawfully working or using the railways of the Great Western Company or any part thereof may run over and use with their engines carriages and waggons and officers and servants whether in charge of engines and trains or for any other purpose whatsoever and for the purposes of traffic of every description the railways of the Company together with all stations and all roads platforms points signals water water engines engine sheds standing room for engines booking and other offices warehouses sidings junctions machinery works and conveniences on or connected with the said

railways And as regards traffic of every description conveyed by them the Great Western Company may demand and take upon and in respect of the said railways works and conveniences the rates and charges which the Company are entitled to demand and take. A.D. 1901.

(2) The terms conditions and regulations to be observed and fulfilled and the tolls charges rent or other considerations to be paid by the Great Western Company for and in respect of the use of the said railways works and conveniences shall be such as may be agreed upon between the Great Western Company and the Company or failing agreement as may be determined on the application of either of the companies or persons interested by the standing arbitrator to be appointed under the section of this Act whereof the marginal note is "Traffic facilities and arrangements with Great Western Company."

(3) In running over and using the said railways and using the stations sidings and conveniences in accordance with the provisions herein-before contained the regulations and byelaws for the time being in force on the railways so used shall be at all times observed so far as such byelaws shall be applicable.

43. During the exercise of the running powers by this Act conferred on the Great Western Company the railways of that company and the Company shall for the purpose of short-distance rates and charges be considered as one railway and in estimating the amount of rates and charges in respect of passengers conveyed partly on the railways of the Company and partly on the railways of the Great Western Company rates and charges may be charged as for three miles and for every mile or fraction of a mile beyond three miles as for one mile only and in estimating the amount of rates and charges in respect of merchandise traffic conveyed partly on the railways of the Company and partly on the railways of the Great Western Company the Great Western Company shall be deemed to be a company connected with the Didcot Company and specified in the schedule to the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order 1892 confirmed by the Railway Rates and Charges No. 1 (Abbotsbury Railway &c.) Order Confirmation Act 1892.

Short-distance charge in case of exercise of running powers by Great Western Company where rates and charges fixed with reference to existing Rates and Charges Order of another company.

44. The running powers by this Act granted shall be exercised by the Great Western Company if required by the Company for the purpose of carrying all through traffic which can be accommodated by means of the Didcot Company's railway and the Great Western

Traffic facilities and arrangements with Great Western Company.

A.D. 1901. — Company's railway and also the Great Western Company's traffic when the railway in conjunction with the Didcot Company's railway forms part of the shortest or most convenient of the routes for such respective traffic and the Great Western Company shall afford all requisite facilities for the conveyance of local traffic by the exercise of their running powers. Provided always that in determining which is the shortest or most convenient route for the purposes of this section the route to Southampton via Shawford Junction shall be excluded from consideration.

The terms upon which the running powers shall be exercised and all questions arising under this section shall in default of agreement be determined by a standing arbitrator to be appointed from time to time by the Company and the Great Western Company or if they do not agree by the chairman of the North Eastern Railway Company on the application of either party.

Additional
mileage
allowance to
Company.

45. On all traffic passing between stations on the Company's railways or beyond and stations on the Great Western Company's railway or beyond north of and passing through Didcot the Company shall in addition to the usual terminals and in addition to the actual mileage carried on the railways of the Company in calculating the mileage be credited out of the proportion accruing to the Great Western and Didcot Companies in respect of such through traffic with an additional mileage of six miles and in respect of all other traffic passing for a distance of twenty miles over the Didcot Company's railways but not passing through Didcot out of the proportion accruing to the Great Western and Didcot Companies in respect of such traffic with an additional mileage of four miles. Provided that such additional mileage shall not in any case be added to the rates or charges chargeable to the public.

Confirming
agreement
with South-
ampton Har-
bour Board.

46. The agreement dated the twenty-second day of February one thousand nine hundred and one and made between the Southampton Harbour Board (in this section called "the board") of the one part and Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act and of the Company of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the board and the Company as if the Company had been party to such agreement and the same had been sealed with their common seal and notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company may and shall for the purposes of the said agreement construct execute and provide all the works and conveniences and exercise all the powers and perform all the obligations which are

thereby agreed to be constructed executed provided exercised or performed by the Company as fully and effectually in all respects as if provisions had been expressly inserted in this Act empowering or requiring the Company to construct execute provide exercise or perform the same and subject to the provisions of this Act and of the said agreement the reclaimed lands tramways conveniences and works thereby agreed to become the property of the board shall by virtue of this Act become and be the absolute property of the board accordingly :

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Provided always that the powers conferred upon the Company by Article 6 of the said agreement to run over and use the tramways therein referred to shall not be exercised unless and until accommodation has been provided by the board at the expense of the Company which in the opinion of an arbitrator to be appointed by the Company and the Board and the London and South Western Railway Company or in case of difference by the Board of Trade on the application of any one or more of them is rendered necessary to accommodate the traffic of the Company without unduly interfering with the working of the traffic of the London and South Western Railway Company.

47. The agreement dated the twenty-eighth day of March one thousand nine hundred and one and made between the mayor aldermen and burgesses of the borough of Southampton (in this section called "the corporation") of the one part and Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act and of the Company of the other part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the corporation and the Company as if the Company had been party to such agreement and the same had been sealed with their common seal and notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company may and shall for the purposes of the said agreement construct execute and provide all the works and conveniences and exercise all the powers and perform all the obligations which are thereby agreed to be constructed executed provided exercised or performed by the Company as fully and effectually in all respects as if provisions had been expressly inserted in this Act empowering or requiring the Company to construct execute provide exercise or perform the same.

Confirming
agreement
with South-
ampton
Corporation.

48. The agreement dated the first day of April one thousand nine hundred and one and made between Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act and of

Confirming
agreement
with
Alexander
Grant-Meek.

A.D. 1901. the Company of the one part and Alexander Grant-Meek of the other part as set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the Company as if the Company had been party to such agreement and the same had been sealed with their common seal.

Confirming
agreement
with Ather-
ley Trustees.

49. The agreement dated the sixth day of May one thousand nine hundred and one and made between Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act and of the Company of the one part and Arthur Harry Howard Atherley for and on behalf of himself and Edward Stafford Howard and William Erasmus Darwin of the other part as set forth in the Fourth Schedule to this Act is hereby confirmed and made binding upon the Company as if the Company had been party to such agreement and the same had been sealed with their common seal.

Confirming
agreement
with Arthur
John Bugler
and Thomas
Henry
Smith.

50. The agreement dated the ninth day of May one thousand nine hundred and one and made between Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act and of the Company of the one part and Arthur John Bugler and Thomas Henry Smith of the other part as set forth in the Fifth Schedule to this Act is hereby confirmed and made binding upon the Company as if the Company had been party to such agreement and the same had been sealed with their common seal.

Confirming
agreement
with South-
ampton
Incorporation.

51. The agreement dated the twenty-third day of May one thousand nine hundred and one and made between Frederick Beresford Turner for and on behalf of the promoters of the Bill for this Act of the one part and the Southampton Incorporation of the other part as set forth in the Sixth Schedule to this Act is hereby confirmed and made binding upon the Company as if the Company had been party to such agreement and the same had been sealed with their common seal.

Restrictions
on displacing
persons of
labouring
class.

52.—(1) The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

(A) Shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as

the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose

A.D. 1901. of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings erected or provided by the Company for the purpose of any scheme under this section.

(9) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(10) The Company shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any

expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector. A.D. 1901.

(11) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Local Government Board under the powers of any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Local Government Board they might have been sufficient to accommodate.

(12) For the purposes of this section—

The expression “house” means any house or part occupied as a separate dwelling;

The expression “labouring class” includes mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

53. Notwithstanding anything in this Act or in any Act or Acts incorporated herewith the Company may out of any moneys by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him respectively from the respective times

As to payment of interest out of capital during construction.

A.D. 1901. of such payments until the expiration of the time by this Act limited for the completion of the works by this Act authorised or such less period as the directors may determine subject always to the following conditions (that is to say):—

- (A) No such interest shall begin to accrue until the Company shall have obtained a certificate from the Board of Trade that two-thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators successors or assigns are legally liable for the same :
- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :
- (C) The aggregate amount to be so paid for interest shall not exceed fifty-four thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which such interest has been paid in pursuance of this section :

Save as herein-before set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Works below
high-water
mark not to
be com-
menced

54.—(1) The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without

the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals.

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 —
 without consent of Board of Trade.

(2) If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such cost and charge shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

55. The Company shall at or near the works below high-water mark authorised by this Act during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade require or approve and if the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights during construction.

56. The Company shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall direct and if the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights after completion of works.

57. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

A.D. 1901.

Abatement
of work
abandoned
or decayed.

58. If any of the works constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal waters are abandoned or suffered to fall into decay the Board of Trade may abate and remove the same or any part of them and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Provision
against
danger to
navigation.

59. In case of injury to or destruction or decay of the embankments or works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Saving
rights of
Crown.

60. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Deposits for
future Bills
not to be
paid out of
capital.

61. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

[1 Edw. 7.]

Southampton and Winchester [Ch. cclxxiv.]
Great Western Junction Railway Act, 1901.

62. Nothing in this Act contained shall exempt the Company or the railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act.

A.D. 1901.

Provision as
to general
Railway
Acts.

63. All costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1901.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

THIS AGREEMENT made the twenty-second day of February one thousand nine hundred and one between the SOUTHAMPTON HARBOUR BOARD (herein-after called "the Board") of the one part and FREDERICK BERESFORD TURNER of Southampton gentleman for and on behalf of the promoters of a Bill now pending in Parliament under the title of the Southampton and Winchester Great Western Junction Railway Bill and on behalf of the Company proposed to be incorporated by the said Bill (all of whom are herein-after referred to as "the promoters" or "the Company") of the other part.

WHEREAS by the Southampton Harbour Act 1863 the Board was constituted and by the Southampton Harbour Acts 1877 1882 1887 1891 and 1900 further powers were conferred on the Board and by virtue of the said Acts the Board now own control and manage a certain pier in Southampton called or known as the Royal Pier also the town quays and extensions thereof and certain ways and approaches and also certain tramways in connexion therewith and levy tolls and dues in respect thereof:

And whereas it is proposed by the said Bill to authorise the Company to construct a railway from Southampton to connect with the Didcot Newbury and Southampton Railway:

And whereas by the said Bill as originally introduced into Parliament it was intended that the said railway shall pass over certain mudlands at Southampton belonging or reported to belong to the mayor aldermen and burgesses of the borough of Southampton (herein-after called "the Corporation") on to certain other mudlands and property belonging or reputed to belong to or under the control of the Board and to terminate by a junction with the tramways of the Board at a point 35 yards or thereabouts measured in a south-easterly direction from the south-east corner of French Street:

And whereas the Board object to the construction of the said railway in the manner proposed by the Bill but are willing to abstain from opposing the Bill (except as herein-after provided) upon the condition that the intended railway as constructed owned and worked by the Company shall terminate on the said mudlands as herein-after provided and the Company shall thereon provide a station (herein-after called "the said station") to accommodate passengers passing to and from the Royal Pier and town quays and shall also construct the railways and tramways for connecting the said railway

with the Board's tramways and make certain alterations of the Board's tramways and execute the other works herein-after mentioned : A.D. 1901.

And whereas the site of the said station and the said tramways and other works herein-before referred to are shown and indicated on a plan (herein-after called "the said plan") signed by Frederick Beresford Turner on behalf of the Company and sealed by the Board :

And whereas it is desirable in the interests of the promoters and of the Board that the agreement herein-after contained should be made by and between the promoters and the Board with reference to the construction of the said railway station and junction conditionally on the Act for the said Bill being passed into law during the session of 1901 :

Now these presents witness and it is hereby agreed as follows :—

1. The Board shall without any other consideration than the construction of the works and reclamation and filling up of the mudlands herein-after agreed to be made and done by the Company convey and release to the Company all their interest in so much of the area of the said mudlands on the north-west side of the Royal Pier as may be vested in them for any estate and may be required for the construction of the said station and works to be provided and constructed under this agreement for the purpose of enabling the Company to construct such station and works thereon together with such other lines sidings and works as may be found necessary by the Company for their said railway subject however to the Board's assent having been first obtained to any such lines sidings and works.

2. The Board further shall and will at all times during the construction of the railway and works in connexion therewith or provided for by this agreement and for the purposes thereof only give and afford to the Company and their contractors full and free access (but not so as to interfere with the user thereof by themselves or others duly authorised by them) in to and over their property and premises adjacent or contiguous to such railway and works and especially in connexion with the pulling down removal and re-erection of the pier entrance house and buildings and the taking up and relaying of the tramways and sidings and reclaiming of the mudlands as herein-after more particularly referred to and the Company will at their own expense provide to the satisfaction of the Board all necessary temporary accommodation in substitution for any buildings conveniences or accommodation removed or interfered with by the Company.

3. The Company shall before opening the railway for public traffic execute and carry out at the expense of the Company (save as herein-after expressly provided) on the land and property of the Board and lands to be acquired by the Company under the said Bill and to the reasonable satisfaction of the Board the following works viz. :—

(a) The Company shall fill in and reclaim to the level of 11·75 above Ordnance datum the mudland on the north-west side of the Royal Pier and for that purpose and for the purpose of constructing the railway and providing the accommodation referred to in this agreement shall construct

A.D. 1901.

and maintain an embankment or retaining wall and from the point A to the point C marked on the said plan the retaining wall shall be constructed in the line marked "sea wall" from A to C on the said plan and shall be formed as a perpendicular outside retaining wall similar to the sea wall now standing along the new road or promenade recently constructed in extension of the Western Shore Road known as the Western Esplanade :

- (b) The Company shall on such reclaimed land and on the site shown on the said plan construct the said station and at the point marked L on the said plan being the point where their lines of railway are intended to join the tramways of the Board (as herein-after agreed to be laid down) erect and for ever hereafter maintain suitable gates to the reasonable satisfaction of the Board So much of the reclaimed land as lies between the lines A B and B C on the said plan and the said retaining wall shall be conveyed to or otherwise effectually vested in the Board :
- (c) The Company shall in exercise of the powers conferred upon the Board by the Southampton Harbour Act 1900 fill in and reclaim the area of mudland lying within lines drawn between the points E F G H I J D as marked on the said plan to the level of 11.75 above Ordnance datum and construct and build along the line from I to K on the said plan a perpendicular sea wall the foundations of which shall be carried to a depth sufficient to admit of dredging so as to obtain a depth of at least five feet of water at low water ordinary spring tides Provided that with the exception of the cost of filling in a strip of land enclosed by the lines drawn between the points J E F G H I J as marked on the said plan which shall be borne and paid by the Company the cost of such filling in reclamation and sea wall shall be borne and paid by the Company and the Board in equal moieties :
- (d) The Company shall take down the existing pier entrance buildings cottage offices shed gates fences and other fences and all other buildings required to be removed for the purpose of laying the new tramways herein-after referred to and providing the new entrance and approach to the pier as shown on the said plan and shall re-erect the same or substituted pier entrance buildings cottage offices sheds gates fences and buildings on the sites shown on the said plan and shall also take down and re-erect where pointed out by the Board the cattle lair and building used in connexion therewith All such work shall be done in accordance with plans to be submitted to and approved of by the Board :
- (e) The Company shall and will in lieu of constructing so much of the railway shown on the deposited plans as lies to the south-east of the point L marked on the said plan lay down a double line of tramways between the said point L and the point M marked on the said plan as shown in red thereon so as to form a connexion between the railway of the Company and the existing tramways of the Board at the said point M and shall also take up so much of the existing tramways and

sidings of the Board as are coloured green on the said plan and relay the same in the lines shown in blue on the said plan together with the connecting lines and junctions with the existing tramways of the Board on the Town Quays and Royal Pier as shown in yellow on the said plan. Provided that such tramways coloured red and blue shall be so laid that the whole thereof and the intervening spaces shall be flush and level with the surface of the roadways over which the same pass:

(f) The Company shall and will if called upon so to do by the Board within ten years from the passing of the Act and at their own cost construct to the satisfaction of the Board and upon or through their property and at a site to be approved by them between the points marked L and E on the said plan and for the purpose of the passage of foot passengers to and from their said Royal Pier at the option of the Board either a footbridge over the lines of tramways leading from the Pier Station of the Company past the entrance of the Royal Pier or a subway passing under such tramways with all proper and necessary steps or approaches and the same when so constructed shall be the property of and be maintained and kept in good repair and lighted by and at the expense of the Board.

4. The whole of the works herein-before agreed to be executed by the Company shall be duly made and completed to the satisfaction of the Board within such time as shall be limited by the Act for the completion of the railway and works provided that the Company shall be allowed if required a further period of twelve months from the expiration of such limited time for the completion of the work described in subsection (c). Upon completion to the reasonable satisfaction of the Board of the before-mentioned filling up and reclamation and of the said new and substituted tramways and the toll house collector's house and all other conveniences and works to be constructed or provided by the Company as aforesaid the lands so reclaimed and the said tramways conveniences and works (excluding the gates mentioned in paragraph 3 subsection (b) hereof and the said station and railway) shall become and be the absolute property of the Board and be hereafter maintained by them and shall be deemed to form for the purposes of tolls rates dues and charges and for other purposes part of the Board's Royal Pier quays tramways and premises and (subject to the provisions herein-after contained as to the use of the railways or tramways thereon) be under the jurisdiction control and authority of the Board as if the same had been constructed by the Board under authority given to them in that behalf.

5. When and so soon as the Company shall have fully completed and carried out the works specified in subsections (a) (b) (d) and (e) hereof the Board shall give and allow to the public the like full free and unrestricted rights of way and passage at all times and for all purposes over the site of the existing pier entrance and portion of the pier and the tramways leading thereto proposed and intended to be removed by the Company as now exist

A.D. 1901. — over the roadway belonging to the Board lying between the existing pier-entrance and the ends of Bugle Street French Street and High Street so as to provide full and free rights of access to and from the roadway of 40 feet in width or public promenade as shown on the said plan.

6. Upon and from the completion of the aforesaid works the Company shall at all times be entitled in common with the Board and all other companies and persons authorised by them to run over and use with their engines and carriages waggons officers and servants and for the purposes of traffic of all kinds the then existing tramways and works of the Board upon and subject to such terms conditions and regulations not being more onerous than the terms conditions and regulations imposed on any other company in respect of similar traffic as shall from time to time be agreed upon between the Company and the Board or as failing agreement shall be from time to time determined by arbitration. Provided always that in respect of such user the Company shall comply with all the requirements and provisions regulating or affecting the use of the said tramways imposed by or by virtue of any Act of Parliament relating thereto and shall indemnify the Board from all liability claims and demands in respect thereof.

7. All costs charges and expenses of and incident to this agreement and the confirmation thereof by Parliament incurred by the Board at the request of the Company shall be paid by the promoters or the Company to the Board.

8. The parties hereto shall use their best endeavours to procure that this agreement shall be scheduled to and confirmed by the Company's Bill and for procuring the insertion in the Bill of any clauses or provisions necessary for giving effect to any of the provisions of this agreement subject to such alterations additions and modifications as Parliament shall approve or impose. Provided that if the same be added to modified or altered in any important respect it shall be lawful for either of the parties hereto to decline to be bound thereby and the same shall thereupon save as is provided by Article 7 as to the payment of costs by the Company be wholly void and the Board may (notwithstanding anything herein-before contained) present and appear by their counsel agents and witnesses in support of any petition which they may be advised to present either against the Bill or against any alterations to be proposed in the Bill for the purpose of securing the objects aforesaid.

9. Provided always and it is hereby expressly agreed and declared that if the Company's Bill shall not pass into law in the present session this agreement shall save as is provided by Article 7 as to the payment of costs by the Company be wholly void.

10. If any dispute question difference or controversy shall at any time arise between the Company and the Board touching the construction or performance or in any wise arising out of this agreement then and in every or any such case the matter in difference shall be referred to arbitration under and

According to the provisions of the Railways Clauses Consolidation Act 1845 A.D. 1901.
and as if the Board were a railway company.

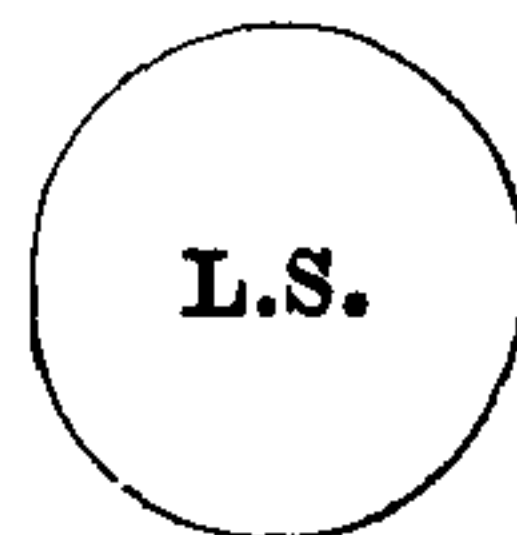
As witness the seal of the Board and the hand and seal of the before-named Frederick Beresford Turner the day and year first above written.

The seal of the Board was hereunto affixed
in the presence of
W. BOWYER
Acting Clerk to the Southampton
Harbour Board.



Signed sealed and delivered by the
before-named Frederick Beresford
Turner in the presence of
ALEXANDER PARIS
Solr. Southampton.

F. BERESFORD TURNER.



THE SECOND SCHEDULE.

THIS AGREEMENT made twenty-eighth day of March one thousand nine hundred and one between the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF SOUTHAMPTON (herein-after called "the Corporation") of the one part and FREDERICK BERESFORD TURNER of Southampton aforesaid gentleman one of the promoters of the Southampton and Winchester Great Western Junction Railway Bill now before Parliament whereby the promoters seek the incorporation of a Company (herein-after called "the Company") authorised to construct a railway from Southampton to connect with the Didcot Newbury and Southampton Railway on behalf of himself and the other promoters of the said Bill and of all other the proprietors of the Company of the other part.

WHEREAS it is intended that the said railway to Southampton shall pass over certain mudlands lying between Blechynden and the Royal Pier in the said borough coloured red and green on the plan herein-after referred to which are the property of or under the control of the Corporation subject to such rights as affect the same :

And whereas the Corporation are of opinion that it would be to the advantage of the borough that the said railway should be constructed and the

A.D. 1901. mudlands dealt with as herein-after mentioned and it has been agreed between the promoters and the Corporation that they should be so constructed and dealt with conditionally on the Act for the said Bill being passed into law during the present session :

Now these presents witness and it is hereby agreed as follows :—

1. The Corporation shall without any other consideration than the construction of the works and reclamation and filling up of the lands herein-after agreed to be made and done by the Company convey or release to the Company all their interest in an area of the mudlands of twenty-three acres or thereabouts lying between Blechynden and the Royal Pier for the purpose of enabling the Company to construct their intended lines of railway and sidings together with the station works and approaches at or near the bottom of Bargate Street formerly known as Orchard Street which railway sidings station works and approaches are herein-after described as “the railway” and are together with the position of such twenty-three acres indicated and coloured pink on the plan (herein-after called “the plan”) hereunto annexed for convenience of reference but not so as to bind the Company as to the precise line of the railway save that the area of the lands to be retained by the Corporation to the landward side of the railway shall be twenty-six acres or thereabouts of which twenty-three acres or thereabouts shall be to the northward and three acres or thereabouts to the southward of the proposed approach to the Bargate Station and of such three acres one acre shall have a frontage to the Western Shore Road with a depth of seventy-five feet and which three acres are shown on the plan and thereon coloured green.

2. The Company shall before opening the entire railway for public traffic execute and carry out at the expense of the Company to the reasonable satisfaction of the Corporation the following works :—

(a) The Company shall construct a solid embankment to be faced with chalk stone concrete or other suitable material on the seaward side of the railway where the railway crosses the mudlands between Blechynden and the Royal Pier sufficient to carry a roadway (herein-after referred to as “the roadway”) not less than forty feet in breadth throughout and of the same level as the general level of the Western Shore Road not at any point less than ten feet above Ordnance datum :

(b) The Company shall at a point marked A on the plan or as near thereto as the Company’s engineer may determine to be practicable make a bridge with a headway of not less than fifteen feet so as to allow the roadway to be continued under the railway :

(c) The Company shall make two good and sufficient footbridges of a width of not less than six feet with proper and necessary approaches and steps at or near the points shown on the plan and marked B and C and provided the consent of the Board of Trade (and which consent the promoters shall and will use their utmost efforts to obtain) can be

obtained thereto a level crossing of thirty feet in width giving access for public traffic (wheel and foot) over the proposed Bargate Station Approach Road to and from the Western Shore Road from and to the roadway and the provisions of the Railways Clauses Act 1863 as to footbridges and level crossings respectively shall apply to such footbridges and crossings. Provided that in the event of the promoters failing to obtain the consent of the Board of Trade to the said proposed level crossing the Company shall if the Corporation shall so require within a period of fifteen years from the passing of the Act construct and thereafter keep in repair at the site of the said proposed level crossing a bridge of the same width and for the same purposes as before specified in respect of such proposed level crossing. The said Bargate Station Approach Road shall not be less than forty feet in width :

A.D. 1901.

The Corporation their assigns their respective lessees tenants and others authorised by them shall after the entire railway shall have been opened for public traffic have full and free right of ingress egress and regress way and passage at all times and for all purposes over so much of the said Bargate Station Approach Road from its junction with the Western Shore Road as abuts upon the property of the Corporation with full power and liberty to enter upon the same at all points where the same so abuts upon the property of the Corporation but in respect of such rights of way and entrance the Corporation shall contribute and pay one equal moiety of the cost of maintaining and repairing such approach road :

- (d) The Company in the construction of their railway and of the said embankment on the seaward side thereof shall take all necessary steps to preserve the supply of water from Southampton Water to and the discharge thereinto of water from the Corporation Baths on the western shore and shall at their own expense construct all such works as shall be necessary for those purposes. The Company shall also make all necessary and proper provision for the carrying off and discharge into Southampton Water of all storm water and surface drainage now discharging on the mudlands along the Western Shore Road and also for the connecting up of all drains and sewers to be constructed or made on or in connexion with the railway with the sewerage mains or surface water drains as the case may require of the Corporation and shall not allow any sewage or surface water to pass otherwise than into such sewerage mains and surface water drains respectively.

3. The Company shall as when any portion of the mudlands on the landward side of the running lines of railway not exceeding nineteen acres shall be filled up and devoted to the purposes of the Railway Company fill up an equivalent area of the mudlands remaining the property of the Corporation free of cost to the Corporation it being agreed that two acres of the area occupied by the said embankment shall be considered as being so much

A.D. 1901. towards the area to be so filled up and the filling in of the remainder of such area shall be commenced and proceeded with at such point or points contiguous to the filling in done by the Company as the Corporation shall from time to time direct. The filling in of such nineteen acres shall be commenced within eighteen months and diligently proceeded with and the whole thereof and of the said equivalent area shall be filled in within five years from the passing of the Act.

4. The Corporation shall at their own expense make metal kerb pave drain complete and open the roadway as a public highway repairable by the inhabitants at large and shall thereafter maintain the same and shall allow the public to use the roadway for landing and embarking in the same manner as they now use the Western Shore Road. The embankment on which the roadway is constructed shall be and remain the property of the Corporation. The Company shall to the reasonable satisfaction of the Corporation after the opening of the railway for public traffic maintain the embankment and the slope thereof in perpetuity.

5. In the event of there being any area of the mudlands on the landward side of the railway which after the Company shall have fully complied with the foregoing provisions as to filling up and reclaiming such mudlands shall not have been entirely filled up the Company will on the request in writing of the Corporation and within a reasonable time fill up and reclaim the same for the Corporation and the Corporation shall and will on completion thereof pay to the Company the cost price of such filling up and reclamation.

6. Nothing herein contained shall be deemed to interfere with prejudice or take away any of the rights powers or authorities vested in the Corporation for the protection of the property of the Corporation or the inhabitants of the borough except as herein-before expressly provided and nothing herein contained shall prejudice the rights powers and authorities vested in belonging to or exercised by the Southampton Harbour Board.

7. As to any portion of the mudlands referred to in Article 3 hereof (not exceeding in the whole ten acres) which the Corporation may already or which within the said period of five years from the passing of the Act they shall have filled in or obtained the filling in of otherwise than by or on behalf of the Company so that the Company shall not be required to fill in the same the Company shall and will pay to the Corporation the cost at which the Company could have filled in the same themselves or if the Corporation shall so require the Company shall purchase from the Corporation so much of the land south of the proposed station approach not exceeding four acres as has been filled in by the Corporation and the amount of such purchase money shall be ascertained and determined failing agreement by arbitration under the provisions of the Lands Clauses Act 1845. Provided in the event of such purchase being so required and carried out the area of nineteen acres referred to in paragraph 3 hereof shall be reduced by the area purchased.

8. In the event of the Company acquiring all or any property abutting on the West Quay Road the Company shall and will sell and the Corporation shall and will purchase at a price to be agreed on or failing agreement settled by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 a strip of such property along the frontage thereof for the purpose of the same being thrown into and widening the public road there.

9. If and when required by the Corporation (but within five years from the passing of the Act) the Company shall sell and the Corporation shall purchase in like manner and on like terms as provided by the last preceding article hereof a strip of land running eastward from the bridge provided for in Article 2 subsection (b) hereof to enable the Corporation to construct a street or road connecting the roadway with the Western Shore Road or any extension thereof in a westerly direction.

10. In the event of the Company destroying or taking away or otherwise rendering unavailable in whole or in part the sea frontage or rights of water way over the foreshore of any of the properties of the Corporation at or adjacent to the West Quay so as to interfere with or destroy the use and occupation of such properties for the purposes for which the same have been used or occupied the Company shall and will pay to the Corporation their lessees tenants and others the occupiers of such properties and each and every of them adequate compensation for such interference or destruction the amount thereof failing agreement to be ascertained by arbitration as provided by the Lands Clauses Consolidation Act 1845.

11. The Company shall and will procure and obtain from the Harbour Board of Southampton the like full free and unrestricted rights of way and passage at all times and for all purposes for the public over the site of the existing pier entrance and portion of pier and the tramways leading thereto proposed and intended to be removed by the Company as now exist over the roadway belonging to the said Harbour Board lying between the existing pier entrance and the ends of Bugle Street French Street and High Street so as to provide full and free rights of access to and from the roadway.

12. The Company shall not nor will in constructing the railway interfere with the traffic on or in any case permanently interfere with obstruct or alter the level of any of the Corporation's electric tramways.

13. The promoters shall cause to be inserted in the Act of Parliament to be applied for by them empowering them to take the said mudlands proper and sufficient clauses for confirming this agreement and providing for the due execution thereof by the Company.

14. All costs relating to the negotiations for preparation and execution of this agreement and all costs incurred by the Corporation in obtaining the confirmation of this agreement and watching by the town clerk the progress of the Bill through Parliament shall be borne by the promoters or if the said Bill is passed into an Act by the Company.

A.D. 1901.

15. Any differences which may arise between the Corporation and the Company or the promoters under or touching this agreement or any act done or required to be done or any money to be paid thereunder shall failing agreement and unless otherwise herein-before provided for be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

16. This agreement shall be subject to such alterations as Parliament may think fit to make therein but if any material alteration shall be made therein by Parliament it shall be competent to either party to withdraw the same and in case the promoters shall not within the present session of Parliament obtain an Act authorising the Company to take the said mudlands this agreement except the provisions herein contained for the payment of costs and expenses by the promoters shall be void.

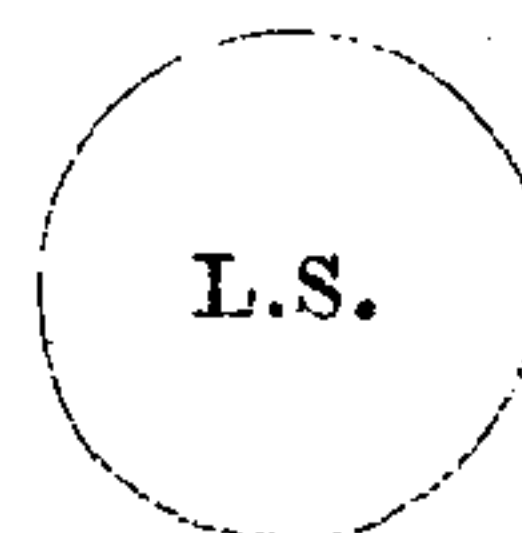
As witness the seal of the Corporation and the hand and seal of the before-named Frederick Beresford Turner the day and year first above written.

The seal of the Corporation
was hereunto affixed in the
presence of
R. R. LINTHORNE
Town Clerk.



Signed sealed and delivered by
the before-named Frederick
Beresford Turner in the
presence of
CHARLES RUSSELL
Solicitor
37 Norfolk Street
Strand
London W.C.

FREDERICK BERESFORD TURNER



THE THIRD SCHEDULE.

A.D. 1901.

MEMORANDUM OF AGREEMENT made the first day of April one thousand nine hundred and one between FREDERICK BERESFORD TURNER of Southampton gentleman one of the promoters of the Southampton and Winchester Great Western Junction Railway Bill now before Parliament whereby the promoters seek the incorporation of a Company (herein-after called "the Company") authorised to construct a railway from Southampton to connect with the Didcot Newbury and Southampton Railway on behalf of himself and the other promoters of the said Bill (herein-after referred to as "the promoters") of the one part and ALEXANDER GRANT-MEEK of Hillworth House Devizes in the county of Wilts Esquire by JOSEPH THORNTHWAITE JACKSON of Devizes aforesaid solicitor his agent duly authorised of the other part.

WHEREAS the said Alexander Grant-Meek is the owner in fee simple of certain lands situate at Shirley in the parish of Millbrook in the county borough of Southampton delineated on the plan hereunto annexed and thereon edged blue :

And whereas the promoters are seeking parliamentary powers for the construction of a railway to be called "the Southampton and Winchester " Great Western Junction Railway " (herein-after referred to as "the said railway") which will cut through a portion of the said land of the said Alexander Grant-Meek and the proposed course and limits of deviation whereof are indicated upon the said plan by red lines :

And whereas the promoters having given the proper preliminary notice of their intention to apply to Parliament the said Alexander Grant-Meek has returned himself as dissenting from the said Bill and has intimated to the promoters his intention of opposing the same :

And whereas with a view of meeting the objections of the said Alexander Grant-Meek and avoiding such opposition the said parties hereto have agreed to enter into such arrangement as is herein-after contained :

Now therefore these presents witness and it is hereby agreed by and between the parties hereto in manner following (that is to say) :—

1. The promoters undertake—

- (a) That in any notice to treat given in pursuance of and after the required Act of Parliament has been obtained to the said Alexander Grant-Meek they or the Company to be formed in pursuance thereof to construct the said railway shall include in such notice to treat and shall purchase from the said Alexander Grant-Meek in manner provided by the Lands Clauses Consolidation Acts not only the land

A.D. 1901.

actually required for the construction of the said railway but also the whole of the land of the said Alexander Grant-Meek with the buildings thereon lying between that so required and the public road shown on the said plan and known as " St. James' Road " :

- (b) To provide for the reception of the surface drainage to the depth of the railway cutting from the land to the north-east of the railway either at the point " A " where the railway crosses the stream at present draining the said land or at such other point as shall be equally effective and either to carry the water across the railway or otherwise deal with it in such manner that it shall be effectually carried off from the said land :
- (c) In the event of the said land to the north-east of the railway being worked out as a brickyard or gravel pit to a level below that of the railway cutting to afford all facilities for providing such additional surface drainage as may be required it being understood that the Company in no way undertakes to secure an outlet for such drainage below the level of the bottom of the said railway cutting :
- (d) If at any future time it shall be found desirable in the opinion of the Southampton borough engineer to lay a sewer across the railway for the purpose of draining houses or other buildings on the said Alexander Grant-Meek's property to give facilities for constructing such sewer and to pay any additional cost of so much of the sewer as is laid upon the property of the Company.

2. In consideration of the agreements and undertaking on the part of the promoters herein-before contained the said Alexander Grant-Meek undertakes that he will not oppose the passing of the said Bill in Parliament or raise any objection thereto and hereby withdraws the said notice of dissent previously given by him.

3. The costs charges and expenses incurred by the said Alexander Grant-Meek in and about or incident to the preparation and completion of this agreement and also of and incident to the negotiations leading thereto shall be borne and paid by the promoters or if the said Bill is passed into an Act by the Company in addition to any other costs which under the said Acts or otherwise they may be liable to pay.

4. Except so far as hereby expressly provided nothing herein contained shall be deemed in any way to do away with alter or otherwise affect any rights or remedies compensation accommodation works or other things which the said Alexander Grant-Meek would or might be possessed of or entitled to had this agreement not been made.

5. This agreement shall be binding and conclusive not only on the promoters personally but on the Company intended to be formed for the purpose of constructing the said railway and shall be scheduled to the said Bill as an agreement to be performed by the undertakers of the said railway Provided that on the Royal Assent being given to the Act and this agreement

adopted by the Company thereby constituted the personal liability on the part of the promoters shall cease and determine. A.D. 1901.

6. Provided always and it is hereby expressly agreed and declared that if the Company's Bill shall not pass into law in the present session this agreement shall save as is provided by Article 3 as to payment of costs by the promoters be wholly void.

In witness whereof the said parties to these presents have hereunto set their hands the day and year first above written.

Signed by the above-named Frederick	}	F. BERESFORD TURNER.
Beresford Turner in the presence of		
ALEXANDER PARIS		
Solr. Southampton.		

Signed by the above-named Joseph	}	JOSEPH T. JACKSON.
Thornthwaite Jackson in the presence		
of		
CHARLES HENRY HAMPTON		
Solr.		
Clerk to Messrs. Jackson and Jackson		
Solrs. Devizes.		

THE FOURTH SCHEDULE.

MEMORANDUM OF AGREEMENT made the sixth day of May one thousand nine hundred and one between FREDERICK BERESFORD TURNER of Southampton gentleman one of the promoters of the Southampton and Winchester Great Western Junction Railway Bill now before Parliament (herein-after called "the Company") of the one part and ARTHUR HARRY HOWARD ATHERLEY of Landguard Manor Shanklin I.W. on behalf of himself and of EDWARD STAFFORD HOWARD of Thornbury Castle in the county of Gloucester C.B. and WILLIAM ERASMUS DARWIN of Ridgemount Basset in the county of Southampton J.P. the owners of the Atherley Estate near Southampton (herein-after called "the Owners") of the other part.

WHEREAS the Company are seeking parliamentary powers for the construction of a railway to be called "the Southampton and Winchester Great Western Junction Railway" (herein-after referred to as "the railway") which will pass through the estate of the Owners known as the Atherley Estate in the county borough of Southampton :

A.D. 1901.

And whereas a Bill for the incorporation of the Company and the making of the railway has been introduced into and is now pending in the House of Commons and the Owners have presented a petition against such Bill :

And whereas with a view of meeting the objections of the Owners and obtaining the withdrawal of the said petition the said parties hereto have agreed to enter into such arrangement as is herein-after contained :

Now these presents witness and it is hereby agreed by and between the parties hereto as follows (that is to say) :—

1. The Company shall at their own expense and to the satisfaction of the Owners and on being required by the Owners so to do provide two suitable occupation bridges for heavy traffic over the railway at points to be agreed by the parties between Howard Road and the road as shown on the deposited plans of the railway and numbered 41 thereon parish of Shirley and shall at the like expense and to the like satisfaction lay down metal kerb channel and complete the roads over such bridges and the approaches thereto The width of the roadway shall be forty feet clear between the parapets of such bridges and the height of the parapets five feet at least Provided that such requirement shall be made if at all within two years from the passing of the Bill into law or six months after the service of the notice to treat and the same shall be fully complied with by the Company before the opening of the entire railway for public traffic.

2. The Company shall in like manner and within the like period and upon the like requirement by the Owners so to do as specified in the preceding paragraph provide a suitable bridge for heavy traffic over the railway so as to carry thereover the projected roadway forty feet in width from Shirley Road to Hill Lane behind Tintern Grove and shall at the like expense and to the like satisfaction lay down metal kerb channel and complete the roadway over such bridge and the approaches thereto.

3. One of the bridges to be provided by the Company as specified in paragraph 1 hereof shall be so provided at the point where the Company's works shall interfere with the footpath numbered 44 on the said deposited plan for the parish of Shirley in direct communication with the remainder of the said footpath on each side and the Company will at their own expense concur with the Owners in applying for and use their best endeavours to obtain from the local authority the necessary powers to divert the said footway in a manner to be indicated by the Owners and will bear their own expenses of and incidental to obtaining such powers to divert such parts of the said footpath as shall not be immediately affected by the Company's works the Owners giving all reasonable assistance for the purpose.

4. The Company shall pay the Owners such a sum as represents the extra expense (if any) which they (the Owners) may be put to owing to the existence of the railway in connexion with the sewers for the Atherley Estate and shall give to the Owners all reasonable facilities for carrying the sewers over or under the railway if necessary so to do.

5. The Company shall allow the Owners to plant the slopes of the cutting where the railway passes through the said estate north of the said Howard

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Road with trees or shrubs under the direction of the Company's engineer and subject to the provision that the Company may at any time if and when they require so to do for any widening alteration or deviation of their line cut down remove or destroy any such trees or shrubs without being under any obligation to renew or replace the same.

6. The Company shall not acquire compulsorily from the Owners any land beyond and except so much as they shall actually require for the construction thereon of their railway and will not use any of the land so required except for running lines and station purposes.

7. The Company shall at their own expense erect fix and maintain an unclimbable iron or other suitable fence as may be agreed on on the boundary of the Company's property where the line passes through the Atherley Estate north of the said Howard Road.

8. The price for any land required to be taken by the Company shall failing agreement be determined by arbitration under the provisions of the Lands Clauses Consolidation Acts.

9. The foregoing provisions shall be provided for and ensured by this agreement being scheduled to and a clause or clauses inserted in the Bill confirming same and in consideration thereof the owners agree to withdraw the notice of dissent given by them and their petition and all further opposition to the Bill.

10. The Company shall pay to the Owners their costs and expenses of this agreement including the negotiation and the settlement thereof and of the clauses including the fees to the Owners' surveyor and engineer not exceeding in the whole the sum of thirty guineas.

11. Provided always and it is hereby expressly agreed and declared that if the Company's Bill shall not pass into law in the present session this agreement shall be wholly void.

12. Any differences which may arise between the Owners and the Company under or touching this agreement or any act done or required to be done or any money to be paid thereunder shall failing agreement and unless otherwise herein-before provided for be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

In witness whereof the said parties hereto have hereunto set their hands the day and year first before written.

Signed by the said Frederick Beresford

Turner in the presence of

ALEXANDER PARIS

Solicitor Southampton.

F. BERESFORD TURNER.

Signed by the said Arthur Harry Howard

Atherley in the presence of

W. H. ABBOTT

Clerk to Messrs Moberly & Wharton

Solicitors Southampton.

ARTHUR HARRY HOWARD
ATHERLEY

A.D. 1901.

THE FIFTH SCHEDULE.

MEMORANDUM OF AGREEMENT dated the ninth day of May one thousand nine hundred and one between FREDERICK BERESFORD TURNER of Southampton gentleman one of the promoters of the Southampton and Winchester Great Western Junction Railway Bill now before Parliament whereby the promoters seek the incorporation of a Company (herein-after called "the Company") authorised to construct a railway from Southampton to connect with the Didcot Newbury and Southampton Railway on behalf of himself and the other promoters of the said Bill (herein-after referred to as "the promoters") of the one part and ARTHUR JOHN BUGLER of 3 Copthall Buildings in the city of London stockbroker and THOMAS HENRY SMITH of No. 17 Basinghall Street in the city of London architect (herein-after called "the Landowners") of the other part.

WHEREAS the promoters and others are promoting a Bill now pending in Parliament entitled "A Bill for making a railway between Winchester and Southampton and for other purposes" and whereby it is proposed to incorporate the Company and to authorise them to make and maintain the said railway the line of which would pass for a considerable distance through an estate known as "the Brambridge Estate" situate in the parishes of Twyford Owlesbury Otterbourne and Bishopstoke in the county of Hants and of which said estate the Landowners are trustees under an indenture of settlement dated the eighteenth day of March one thousand eight hundred and ninety-seven and made between Douglas Gordon Macrae of the first part Florence Lucy Fredrica Levy of the second part and William Graham and the said Thomas Henry Smith of the third part:

And whereas the Landowners have lodged in the House of Commons a petition against the said Bill:

And whereas in order to the obviating of all opposition by the Landowners to the said Bill and for other purposes herein appearing the parties hereto have entered into the agreement herein contained with the intent that the Company should become party to and execute these presents forthwith after their incorporation:

Now therefore these presents witness that for the considerations herein appearing it is hereby mutually agreed by and between the promoters and with the intent to bind the Company on the one hand and the Landowners (on behalf of the trustees and beneficiaries of the said estate for the time being) on the other hand and also by way of separate agreement between the Company on the one hand and the Landowners (as such representatives as aforesaid) on the other hand as follows:—

1. In addition to the accommodation and other works which the Company may become liable to execute under the general Acts and their special Act

relating to railways for the protection and benefit of the said estate and the Landowners and their tenants and to the erection of a station on or immediately adjacent to the said estate in connexion with the said intended railway the Company shall in particular execute and provide the several accommodation and other works in respect of the estate which John Edward Waller of the firm of Kincaid Waller & Manville of No. 29 Great George Street Westminster engineer on behalf of the Landowners shall advise to be required fairly in the interest and for the protection of the said estate and which shall be approved of by William Vaux Graham of 5 Queen Anne's Gate Westminster engineer on behalf of the Company and in the event of the said William Vaux Graham not agreeing with the said John Edward Waller that any item of accommodation or other work proposed by the said John Edward Waller is fairly required for the protection of the said estate then the question or matter of difference shall be submitted to the decision of an umpire to be selected by the said John Edward Waller and William Vaux Graham whose decision shall be final.

2. The Company shall not in any respect damage or obstruct the existing drainage of the said estate but shall construct proper drains and culverts and other works for the efficient drainage of the said estate (so far as the drainage may be affected by the Company's works) at such depths and in such manner as the agent for the time being for the Landowners shall reasonably require and also all such works as may be required for maintaining and making perfect any under drainage which may be intersected or otherwise interfered with by the Company's works.

3. All accommodation and other works to be done by the Company as herein-before determined other than drainage works shall at all times hereafter be maintained by the Company at their own expense in all respects.

4. The promoters will use their utmost possible endeavour to procure the insertion and enactment in the said pending Bill of clauses for the protection of the said estate embodying the provisions of this agreement in respect of the accommodation and other works for its protection specified or to be determined as herein-before mentioned.

5. The promoters and the Company agree to pay to the Landowners all their costs charges and expenses incurred or to be incurred by them in respect of and incidental to the preparation and lodging of this petition and opposition to the said pending Bill and withdrawal of such opposition and of this agreement including therein all charges and expenses of the Landowners' surveyors all which said costs are herein referred to as the preliminary costs and in addition the Company will pay all other costs charges and expenses of the Landowners which may be payable by the Company under the Lands Clauses Consolidation Acts and other Acts and their special Act in the event of the Company taking any part of the said estate for the purposes of their said public undertaking Provided always that the amount of the preliminary costs shall be fixed at 31*l.* 10*s.* and shall be paid to the Landowners at the date hereof.

A.D. 1901. 6. Except as to the two last preceding clauses and as to the manner herein-before specified of determining the character of the accommodation and other works to be executed by the Company the agreements on the part of the Company herein-before contained are contingent on the said pending Bill being passed into law in its present or some modified form in the present session of Parliament so far as regards the clauses authorising the formation of the railway through the said estate.

7. If the pending Bill be passed into law in the present session the promoters will within three months thereafter procure the Company to execute under their common seal either these presents or the duplicate thereof and in case the Company shall refuse or neglect to execute this agreement within the time herein-before limited and in this respect time shall be of the essence of the contract the promoters and each of them respectively and their respective heirs executors and administrators shall be jointly and severally liable to pay on demand to the Landowners the sum of two hundred and fifty pounds as liquidated damages Provided that on the Royal Assent being given to the Act and this agreement adopted by the Company thereby constituted the personal liability on the part of the promoters shall cease and determine.

8. On the faith of this agreement being on the part of the promoters and the Company respectively in all respects specifically performed and observed the Landowners will withdraw their said petition and will not in any manner either by themselves or their agents further oppose or otherwise impede the passage of the said Bill through Parliament this present session.

In witness whereof the parties have hereto set their hands the day and year first above written.

Witness to the signature of the above-
named Arthur John Bugler and
Thomas Henry Smith

F. O. CLUTTON

37 & 39 Essex Street

Strand W.C.

Solicitor.

THOMAS HENRY SMITH.

ARTHUR J. BUGLER.

Witness to the signature of the above-
named Frederick Beresford Turner

J. CHARLES WARNER

Winchester

Solicitor.

F. BERESFORD TURNER.

THE SIXTH SCHEDULE.

A.D. 1901.

MEMORANDUM OF AGREEMENT dated the twenty-third day of May one thousand nine hundred and one between FREDERICK BERESFORD TURNER of Southampton gentleman one of the promoters of the Southampton and Winchester Great Western Junction Railway Bill now before Parliament whereby the promoters seek the incorporation of a Company (herein-after called "the Company") authorised to construct a railway from Southampton to connect with the Didcot Newbury and Southampton Railway on behalf of himself and the other promoters of the said Bill (herein-after referred to as "the promoters") of the one part and the Southampton Incorporation (herein-after called "the Incorporation") of the other part.

WHEREAS the promoters are promoting a Bill now pending in Parliament entitled "A Bill for making a railway between Winchester and Southampton" and for other purposes" and whereby it is proposed to incorporate the Company and to authorise them to make and maintain the said railway the line of which would pass through certain lands situate in the parish of Shirley in the county borough of Southampton the property of the Incorporation:

And whereas the railway if constructed will pass through the said lands of the Incorporation in a cutting dividing the same into two portions and upon the easternmost of such portions the Incorporation are now erecting an infirmary and upon the remaining portion propose hereafter to erect a workhouse:

And whereas the Incorporation have lodged in the House of Commons a petition against the said Bill:

And whereas in order to obviate all further opposition by the Incorporation to the said Bill and for other purposes herein-after appearing the parties hereto have agreed to enter into the agreement herein contained:

Now these presents witness and it is hereby mutually agreed by and between the parties hereto as follows:—

1. That in the event of a notice to treat being given by the Company to the Incorporation in respect of the portion of their aforesaid lands required for the construction and purposes of the railway the Incorporation shall not require the Company to acquire purchase or pay for any other land or premises than shall be actually defined and set forth in such notice to treat and on the other hand the Company agree that no other lands than are actually required for the construction and purposes of the railway shall be included in such notice to treat.

2. That in addition to the accommodation works herein-after specified and set forth the price to be paid by the Company to the Incorporation for the

A.D. 1901. — land if and when so required to be taken by the Company shall be the sum of five thousand pounds such sum to include and cover (save as herein-after mentioned) all compensation or damage or claims for compensation or damage to or in respect of the Incorporation's remaining property at Shirley aforesaid of every kind and nature whatsoever and whether claimable or payable under the Act incorporating the Company or any general or other Act whatsoever also including all mines and minerals and all rights whatsoever to the said land other than that of pre-emption.

3. That the accommodation works to be constructed by the Company shall be as follows :—

(A) A cleft oak close-boarded fence of a height of not less than seven feet six inches along the western boundary of the land of the Incorporation adjoining the site of the infirmary now in course of construction where the same abuts upon the railway the details thereof to be agreed between the respective engineers of the Company and the Incorporation such fence to be fully completed before the commencement of the construction of the line so far as the same abuts on the said lands of the Incorporation Provided that if the Local Government Board require a brick wall instead of a fence the Incorporation shall pay to the Company any additional cost incurred by substituting such wall for a fence :

(B) A like fence along the eastern boundary of the land of the Incorporation severed by the railway and abutting thereon :

(C) A bridge over the railway connecting the lands of the Incorporation on either side thereof of a width of eighteen feet at a point to be agreed on between the said respective engineers sufficient to carry traffic of all kinds and also for the purpose of affording all necessary communication between the lands of the Incorporation on either side of the railway Such second fence and bridge to be made and constructed within one year from the time when the Incorporation shall commence to build a workhouse or building approved of by the Local Government Board on the western side of the railway :

(D) The said fences or walls and bridge as and when constructed shall be and remain the property of the Company and shall be kept in repair by them but the Incorporation shall be liable to pay for and make good any damage or injury caused to them or any or either of them wilfully or by improper or extraordinary user thereof by the Incorporation.

4. The foregoing provisions shall be provided for and ensured by this agreement being scheduled to and a clause or clauses inserted in the Bill confirming the same and in consideration thereof the Incorporation agree to withdraw their petition and all opposition to the Bill in its passage through Parliament.

5. The Company shall upon giving notice to treat to the Incorporation pay to them in addition to the sum before mentioned the further sum of four hundred and fifty pounds for and towards their costs charges and expenses

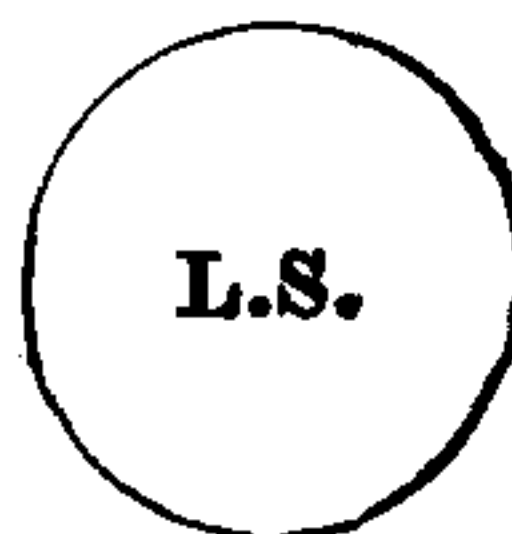
of and in connexion with their said petition and this agreement and the carrying same into effect. A.D. 1901.

6. Provided always and it is hereby expressly agreed and declared that if the Company's Bill shall not pass into law in the present session this agreement shall be wholly void and on the Bill passing into law the obligations of this agreement shall be fulfilled by the Company and the promoters shall be discharged from all liability thereunder.

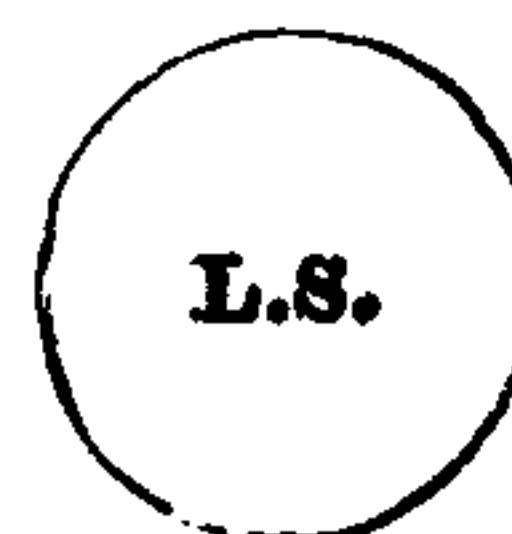
7. Any difference which may arise between the Company and the Incorporation under or touching this agreement or any act done or required to be done or any money to be paid thereunder shall failing agreement and unless otherwise herein-before provided for be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

In witness whereof the said Frederick Beresford Turner hath hereunto set his hand and seal and the Incorporation has hereunto caused its common seal to be affixed the day and year first above written.

Signed sealed and delivered by the above - named Frederick Beresford Turner in the presence of ALEXANDER PARIS Solr. Southampton.	}	F. BERESFORD TURNER.
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The seal of the Incorporation was here- unto affixed in the presence of W. J. ATKINS Chairman of the Southampton Incorporation.	}
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1. The first part of the report is a general statement of the purpose of the study.

2. The second part is a description of the methods used in the study.

3. The third part is a description of the results of the study.

4. The fourth part is a discussion of the results of the study.

5. The fifth part is a conclusion of the study.

6. The sixth part is a list of references.

7. The seventh part is a list of appendices.

8. The eighth part is a list of figures.

9. The ninth part is a list of tables.

10. The tenth part is a list of footnotes.

11. The eleventh part is a list of abbreviations.

12. The twelfth part is a list of symbols.

13. The thirteenth part is a list of acronyms.